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Judge orders Trump to sit for a deposition in his defamation lawsuit against the BBC by Dec. 11



1 of 2 | President Donald Trump speaks to reporters after arriving on Air Force One, Wednesday, Oct. 21, 2026, at Joint Base Andrews, Md. (AP Photo/Julia Demaree Nikhinson) License this photo

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BY DAVID FISCHER

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MIAMI (AP) — A federal judge on Thursday ordered President Donald Trump to sit for a deposition in his $10 billion defamation lawsuit against the BBC by Dec. 11.

The order from U.S. Magistrate Judge Enjoliqué Lett came as lawyers for the British broadcaster complained that Trump had delayed his appearance. Charles Tobin, attorney for the BBC, said that with two months left in the discovery period, “we still haven’t been able to depose the plaintiff.”

He noted there was an agreed-upon date of Oct. 16, but that Trump had canceled it for a “matter of national importance.” Tobin said the Republican president was in fact campaigning in Georgia that day. “He was participating in party politics and prioritized that over sitting for the deposition,” Tobin said.

Lett said Trump must sit for a deposition by Dec. 11, or face sanctions up to dismissal of his lawsuit -– unless the discovery period was extended past Dec. 18.

Discovery, where lawyers for both sides exchange documents and other evidence, is scheduled to end Dec. 18, and the BBC’s attorneys want to make sure they have Trump’s deposition before that deadline.

Lett said only the presiding judge assigned to the case can alter the trial schedule, and the defense said it would be open to scheduling the deposition at a later time if the trial schedule was also moved back.

Trump, who has often avoided depositions, filed his lawsuit against the BBC last December. He accused the publicly funded broadcaster of defamation as well as deceptive and unfair trade practices related to a documentary, "Trump: A Second Chance."

The BBC acknowledged that filmmakers spliced together quotes from different sections of the speech Trump delivered to his supporters on Jan. 6, 2021, before the storming of the U.S. Capitol, to make it seem he was directly urging violence. The broadcaster apologized over the editing, and the head of the BBC and its top news executive both resigned. But the BBC has denied Trump's claims that it defamed him.

Trump's lawyers say Jack Smith lacks 'personal knowledge' of issues in the case

To bolster its defense, the broadcaster subpoenaed former special counsel Jack Smith earlier this month. Trump's lawyers argued, in a joint filing asking for a hearing on the matter, that there was no good reason for Smith, who is not a party to the case, to appear.

Tobin, the BBC lawyer, told the judge Thursday that Smith has not objected to being deposed for this case, meaning the only objection is coming from Trump. Tobin said the BBC is not trying to relitigate the events of Jan. 6, but that Smith is one of the leading experts in what happened that day, and his deposition could lead the BBC to evidence that could help their case.

"We can argue later on whether his testimony is admissible," Tobin said, "but we are entitled to that deposition."